

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2008-002373

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
CHERRI SABO, LICENSE NO.: LPC-3544,

Respondent.

IT IS HEREBY STIPULATED by and between the Board of Licensed Professional
Counselor Examiners ("Board") and Cherri Sabo, ("Respondent") as follows:

1. Respondent was licensed to practice as a professional counselor in the State of Colorado on August 29, 2003, having been issued license number LPC-3544, and is currently so licensed.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising in case number 2008-002373 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2008-002373. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Applicant admits the following:
 - a. Between July 2006 and September 2007, Respondent treated a client whose clinical issues and presentation were outside Respondent's areas of experience or competence.
 - b. Between July 2006 and September 2007, Respondent failed to terminate a relationship with a client when it was reasonably clear that the client was not benefiting from the relationship and was not likely to gain such benefit in the future.
 - c. Between July 2006 and September 2007, Respondent repeatedly

failed to make essential entries on a patient's record.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that the above conduct is a violation of §12-43-222(1)(h), (k) & (u), C.R.S.

CLINICAL SUPERVISION

6. Respondent's license to practice as a professional counselor in the State of Colorado is hereby placed under clinical supervision for a period of two (2) years, beginning on the effective date of this Order. During the clinical supervision period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of clinical supervision is tolled during any time that Respondent is not practicing professional counseling in the State of Colorado. The period of clinical supervision shall resume at such time as Respondent resumes practicing professional counseling in the State of Colorado in accordance with this Order.

8. Credit toward the period of clinical supervision will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado and is in full compliance with all terms of this Order.

9. If, at the end of the clinical supervision period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of clinical supervision. Request for termination of clinical supervision must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of clinical supervision.

CLINICAL SUPERVISOR

10. During the term of clinical supervision, Respondent's practice shall be monitored by a clinical supervisor. Respondent shall submit, in writing, within 30 days of the effective date of this Order, three proposed clinical supervisors for the Board's approval. Respondent shall include a program-approved clinical supervisor application from each potential clinical supervisor, with attached curriculum vita or resume. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and

b. It is recommended that the clinical supervisor have a minimum of five years of experience and has not been subject to professional discipline; and

c. The clinical supervisor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

d. The clinical supervisor shall have experience in trauma-informed counseling, PTSD, boundaries and women's issues, and effective recordkeeping and treatment planning.

11. Respondent must have a clinical supervisor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a clinical supervisor is approved.

12. After the Board's written approval of a clinical supervisor, Respondent and the approved clinical supervisor shall enter into a written contract for supervision. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, the application and responsive documents, any investigative report, and any prior practice evaluation(s); has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

13. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice, her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

14. Should the Board determine from the clinical supervisor's evaluation that Respondent cannot perform any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice and/or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, and/or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and/or safe to practice. Once Respondent satisfies the Board that she is qualified, competent, and/or safe to fully practice, Respondent may resume full practice.

15. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the clinical supervisor deems necessary, for every 20 hours of client contact, but at least once a month. During the clinical supervision sessions, Respondent and her clinical supervisor must review and discuss each of Respondent's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

16. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the clinical supervision is completed.

17. If at any time the Board has questions or concerns regarding the clinical supervision, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.

18. If at any time the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, and/or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion.

19. A copy of the notice referenced in paragraph 18 will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

20. Respondent shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

21. Respondent or the clinical supervisor may terminate the supervision relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct his/her supervision and report to the Board in accordance with this Order.

EARLY RELEASE FROM CLINICAL SUPERVISION

22. At the end of 18 months of clinical supervision acceptable to the Board, Respondent may make a written request to the Board to be released from further clinical supervision. The Board will consider this request in good faith, and will promptly inform Respondent of its decision. The decision shall be made in the Board's sole discretion.

CONTINUING EDUCATION

23. During the period of clinical supervision, Respondent must successfully complete at least forty (40) hours total of Board-approved professional continuing education

courses in the areas of trauma-informed counseling, PTSD, boundaries and women's issues, and recordkeeping and treatment planning.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing professional counseling, unless such supervision or consultation is monitored in accordance with this Order.

26. In the event Respondent relocates at any time during the clinical supervisory period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

27. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

28. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

29. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212 and 224, and 24-4-104(9), C.R.S.

30. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

31. Respondent shall obey all state and federal laws while this Order is in effect.

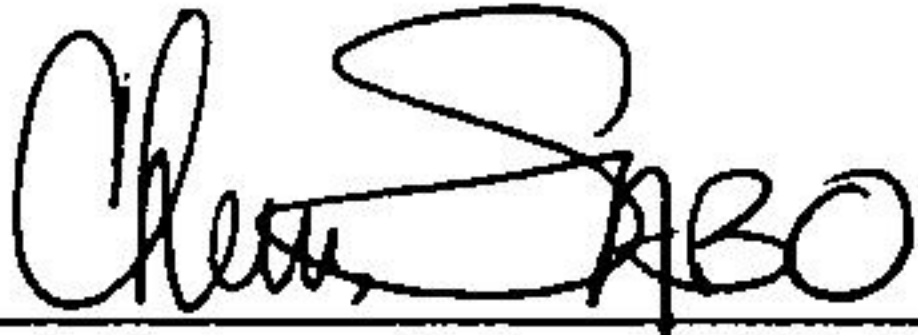
32. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

33. This Order shall become effective when accepted and signed on behalf of the Board.

34. This Order shall be admissible as evidence at any hearing held before the Board.

35. This Order shall be a public record in the custody of the Board.

RESPONDENT



CHERI SABO, license no. LPC3544

Dated: 4-13-10

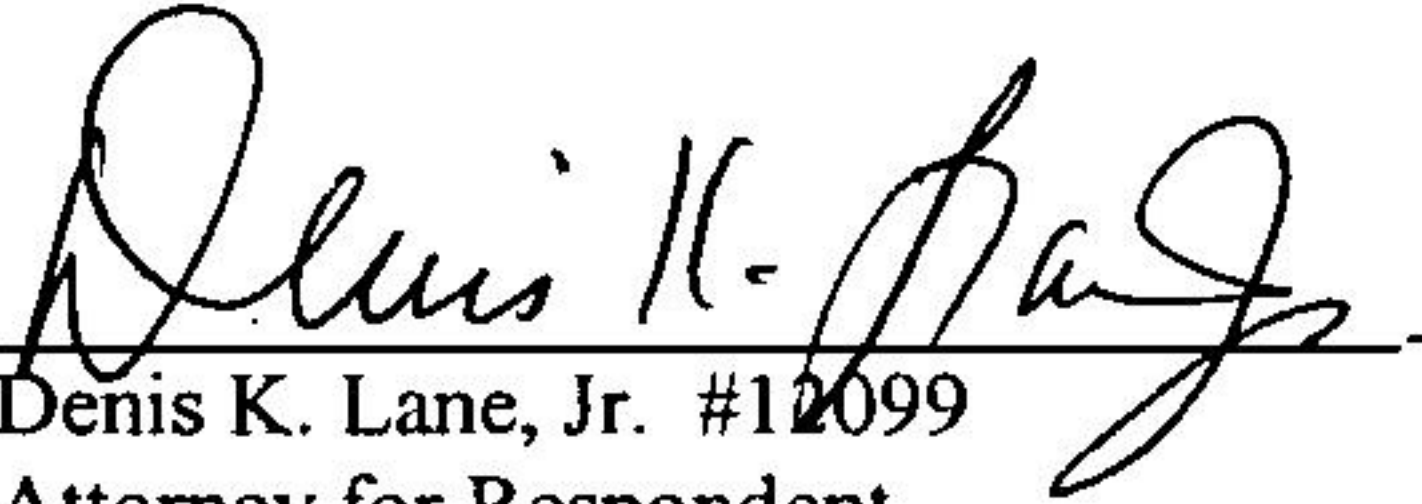
**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**



Carlotta Knox
Program Director

Effective Date: This 29th day of
April, 2010.

Approved as to form:



Denis K. Lane, Jr. #12099
Attorney for Respondent


Laurie K. Rottersman, AAG
Attorney for Petitioner